

4.

CASE #	CASE NAME	HEARING NAME
CVME2511814	RIETA VS GARCIA	MOTION FOR LEAVE TO AMEND

Tentative Ruling: GRANTED; NO OPPOSITION FILED

5.

CASE #	CASE NAME	HEARING NAME
CVME2512122	CARCAMO VS SANDOVAL	DEMURRER

Tentative Ruling: OFF CALENDAR

6.

CASE #	CASE NAME	HEARING NAME
CVME2513330	HOLLOWAY VS RABINEAU	DEMURRER

Tentative Ruling: MOTION TO STRIKE DENIED

DEMURRER SUSTAINED WITHOUT LEAVE TO AMEND as to the 4th Cause of action.

On May 21, 2026, the Court reconsidered its earlier May 12, 2026, rulings on Defendant's motion to strike and demurrer, and ordered that the rulings be stricken on the ground that Defendant had not met its obligation to meet and confer in accordance with Code of Civil Procedure sections 435.5 and 430.41.

The Court continued the matters to August 04, 2026, and ordered Defendant to meet and confer. Defendant was to, 10 days before the continued hearing date, either vacate the hearing or file with the court a declaration stating whether Plaintiff agreed to amend the complaint or stating the means by which they met and conferred and identifying the specific objections to the motion which the parties were unable to resolve. In accordance with the Court's order, Defendant's counsel filed a declaration explaining that, despite multiple efforts to meet and confer by telephone, Plaintiff failed to cooperate by continuing to delay the call and failing to respond to counsel's follow-up requests. (See Declaration of Virginia Narian ¶¶ 7-12, filed on July 23, 2026.)

Under the statutory meet and confer provisions, Defendant may satisfy the requirement to meet and confer by filing a declaration stating "[t]hat the party who filed the pleading subject to demurrer or motion to strike failed to respond to the meet and confer request of the [demurring and moving] party or otherwise failed to meet and confer in good faith." (Code Civ. Proc., §§ 430.41(a)(3)(A)&(B); 435.5(a)(3)(A)&(B).) Here, this requirement was met

Deny.

The motion is denied because the Complaint sufficiently alleges the ultimate facts supporting a claim for punitive damages pursuant to Civil Code section 3294. The cause of action for breach of fiduciary duty supports misappropriation of funds amounting to constructive fraud.

Emotional distress damages are recoverable where the distress “naturally ensued from the acts complained of”; and emotional distress is “not an inevitable consequence of the loss of money.” (*Merenda v. Superior Court* (1992) 3 Cal.App.4th 1, 10, disapproved on other grounds by *Ferguson v. Lieff Cabraser, Heimann & Bernstein* (2003) 30 Cal.4th 1037, 1044 [balancing of policy considerations under the factors provided in *Biakanja v. Irving* (1958) 49 Cal.2d 647, 651].)

Plaintiff has sued her former attorney for professional malpractice in the handling of settlement funds from a prior personal injury claim and for charging excessive fees that resulted in Plaintiff’s recovery of only a fraction of the settlement. On December 16, 2025, Plaintiff filed her Complaint in this case alleging the following causes of action against the former attorney: (1) Legal malpractice; (2) breach of fiduciary duty; (3) conversion/misappropriation of client funds; and (4) intentional infliction of emotional distress (“IIED”). Plaintiff also claims she is entitled to punitive damages. Plaintiff is proper.

Defendant moves to strike the portion of the Complaint concerning Plaintiff’s claim for punitive damages. Defendant argues that the misconducts alleged in the Complaint, merely amounts to ordinary negligence and cannot constitute the malice, oppression, or fraud necessary for seeking punitive damages because the requisite “evil motive” is missing in the allegations. Defendant also contends that Plaintiff’s allegation that Defendant illegally embezzled proceeds from the attorney trust account belonging to Plaintiff for personal use, engaged in fraudulent billing practices by commingling Plaintiff’s cases, and exaggerating the amount Plaintiff owed are vague, conclusory allegations without any factual support.

Defendant also concurrently demurs to Plaintiff’s cause of action for IIED because Plaintiff fails to state conduct so extreme as to be beyond all bounds of decency tolerated by society and therefore cannot meet the elements necessary to allege a cause of action.

Plaintiff filed an opposition to the motion to strike. Plaintiff offers no substantive argument in support of her opposition to the motion to strike and merely argues that the motion is procedurally proper and that the challenged allegations are relevant and material, and not subject to be stricken under Code of Civil Procedure section 436. Plaintiff did not file a separate opposition to the demurrer, but her argument in response to the demurrer is also embedded in the opposition to the motion to strike. Plaintiff, citing *Kaushansky v. Stonecroft Attorneys, APC* (2025) 109 Cal.App.5th 788, argues that emotional distress damages are recoverable in an action for breach of fiduciary duty.

In summary, the motion to strike is denied for reason Plaintiff has alleged the ultimate facts supporting a claim for punitive damages. The demurrer is sustained without leave to amend for reason Plaintiff has not alleged facts showing that emotional distress

was an inevitable consequence from Defendant's breach of his fiduciary duties. Plaintiff's emotional upset comes from an inherently economic concern.

Defendant brings a motion to strike, arguing that the Complaint is requesting for the relief of punitive damages which is not supported by the allegations. Here, however, the Complaint is sufficient to sustain a basis for punitive damages.

Punitive damages are authorized by statute in an action for breach of an obligation not arising from contract, where the tortious event involves an additional component of "oppression, fraud, or malice" which must be proven with "clear and convincing evidence." (Code Civ. Proc., § 3294, subd. (a).) To state a claim for punitive damages under Civil Code Section 3294, a plaintiff must plead facts supporting a showing of malice, oppression or fraud as defined by Civ. Code §3294(c):

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

"To support punitive damages, the complaint...must allege ultimate facts of the defendant's oppression, fraud, or malice." (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 316-317.) Conclusory characterization of defendant's conduct as "intentional, willful and fraudulent is patently insufficient statement of 'oppression, fraud, or malice, express or implied,' within the meaning of section 3294." (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) "Because punitive damages are imposed 'for the sake of example and by way of punishing the defendant' (§3294, subd. (a)), they are typically awarded for intentional torts such as assault and battery, false imprisonment, intentional infliction of emotional distress, defamation," etc. (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211.)

Here, Plaintiff's allegations are sufficient to allege a claim for punitive damages. Plaintiff alleges as follows. Defendant represented Plaintiff in a trip-and-fall claim against the City of Compton. (Complaint, ¶¶ 3-8.) Plaintiff alleges that no work was done in Plaintiff's case from the time of representation up until late 2019. (Complaint, ¶ 9.) Plaintiff alleges that Defendant did not communicate with her about the case. (Complaint, ¶ 10.) While the trip-and-fall case was under progress, Plaintiff was injured in an automobile accident for which Defendant agreed to represent Plaintiff. (Complaint, ¶¶ 11-13.) Defendant assured Plaintiff that civil actions would be filed in court for both civil matters, but no civil complaint was filed. (Complaint, ¶¶ 16, 18.) Plaintiff alleges that, once Defendant had Plaintiff "locked in," he misused Plaintiff's funds by commingling the funds between the two cases in which Defendant represented Plaintiff. (Complaint, ¶ 19.)

Plaintiff also alleges that Defendant misused the funds in Plaintiff's attorney trust account by paying Plaintiff for a settlement from one case with the settlement funds from the other case. (Complaint, ¶ 20.) Plaintiff was later informed by Defendant that the trip-and-fall case settled for \$115,000, but the net settlement recovery for Plaintiff was only \$16,113.85 after deducting attorney's fees of \$46,000, medical liens in the amount of \$27,833.53, litigation costs of \$17,952.62, and advances to Plaintiff in the amount of \$7,100. (Complaint, ¶ 22.) When Plaintiff asked for accounting or a ledger with itemization of the services provided, Defendant advised her that this was impossible because all of Defendant's client accounts are in the same trust account. (Complaint, ¶ 23.) Plaintiff alleges that Defendant illegal embezzled proceeds from the attorney trust account belonging to Plaintiff for personal use and was unjustly enriched thereby. (Complaint, ¶ 24.)

Defendant argues that the misconducts alleged in the Complaint, merely amounts to ordinary negligence and cannot constitute the malice, oppression, or fraud necessary for seeking punitive damages because the requisite "evil motive" is missing in the allegations. This argument fails as punitive damages are recoverable in cases alleging breach of fiduciary duty constituting constructive fraud, and the Complaint is sufficient to state such a claim. (See *Michaelson v. Hamada* (1994) 29 Cal.App.4th 1566, 1582.) "An attorney owes all clients ... duties of undivided loyalty and diligence, among other fiduciary duties." (*White Mountains Reins Co. of America v. Borton Petrini, LLP* (2013) 221 Cal.App.4th 890, 902.) "[A] breach of fiduciary duty is a species of tort distinct from a cause of action for professional negligence." [Citations.] (*Stanley v. Richmond* (1995) 35 Cal.App.4th 1070, 1086.) Breach of duty may amount to "a unique species of fraud applicable only to a fiduciary or confidential relationship." (*Prakashpalan v. Enstrom, Lipscomb & Lack* (2014) 223 Cal.App.4th 1105, 1131, internal quotation marks omitted.) " 'Constructive fraud "arises on a breach of duty by one in a confidential or fiduciary relationship to another which induces justifiable reliance by the latter to his prejudice." [Citation.]' [Citation.]" (*Ibid.*) Here, Plaintiff's Complaint alleges the cause of action for breach of fiduciary duty based on Defendant's misconduct during his representation of Plaintiff. Plaintiff alleges that Defendant mishandled and comingled Plaintiff's settlement funds and refused to provide an accounting and concealed information that would disclose whether the net recovery distributed to Plaintiff is proper and just. Without the disclosure of proper accounting, Plaintiff is unable to make such determination and is left with only a fraction of the \$115,000 settlement, and the inability results in prejudice to Plaintiff. The allegations such improper billing practices satisfies the elements of constructive fraud as set forth in *Prakashpalan v. Enstrom, Lipscomb & Lack, supra*, 223 Cal.App.4th at 1131.

Defendant contends that Plaintiff's allegation that Defendant engaged in fraudulent billing practices are vague, conclusory allegations without any factual support. However, "[t]he particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the Plaintiff. [Citation.]" (*Roger v. County of Riverside* (2020) 44 Cal.App.5th 510, 533.) "[L]ess particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the Plaintiff" and any ambiguity may be resolved through the discovery process. (*Ibid.*) Here, Defendant is alleged to have suppressed

information needed for proper accounting and as a result, the pleading may be alleged with less particularity.

Accordingly, the motion to strike is denied.

To state a cause of action for Intentional Infliction of Emotional Distress (“IIED”) Plaintiff must allege: (1) “extreme and outrageous conduct by defendant with an intention of causing or reckless disregard of the probability of causing emotional distress”; (2) “severe or extreme emotional distress”; and (3) “actual and proximate causation of the emotional distress by the defendant’s outrageous conduct”. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.) An outrageous conduct is one that was so extreme as to be beyond all bounds tolerated by society, which must be alleged with great specificity. (*Id.* at 1051; *Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160-161.) Defendant argues that the Complaint fails to state conduct so extreme as to be beyond all bounds of decency tolerated by society and therefore cannot meet the elements necessary to allege a cause of action.

In opposition, Plaintiff cites *Kaushansky v. Stonecroft Attorneys, APC* (2025) 109 Cal.App.5th 788, in which the court held that “[e]motional distress damages may be recoverable if directly caused by an attorney’s conduct in breach of his fiduciary duties.” (*Id.* at 767.) But not every claim for breach of fiduciary duty supports a claim for emotional distress. The *Kaushanky* court recognized the lines of cases which held that “ ‘[e]motional distress damages ordinarily are not recoverable in a legal malpractice action if the representation concerned primarily the client’s economic interests and the emotional injury derived from an economic loss.’ [Citation.]” (*Id.* at 768.) It held that, even in the case of breach of fiduciary duty, the client must sufficiently allege that the “ ‘intentional or affirmative misconduct by an attorney or noneconomic injury resulting from an attorney’s professional negligence.’ [Citation.]” (*Ibid.*) Here, the allegations show that Plaintiff’s alleged emotional distress ensued from purely economic losses of not receiving the expected settlement rather than Defendant’s alleged misconduct that caused the economic losses.

7.

CASE #	CASE NAME	HEARING NAME
CVME2513330	HOLLOWAY VS RABINEAU	MOTION TO STRIKE

Tentative Ruling: See above.

8.

CASE #	CASE NAME	HEARING NAME
CVME2602721	VILLEDA VS INTERNATIONAL COFFEE & TEA, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: GRANT the motion to compel arbitration and stay civil proceedings pending arbitration.